

23STCV28732 23STCV28732

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Case Number: 23STCV28732 Hearing Date: August 27, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

27, 2026 TRIAL DATE: October 5, 2026

CASE: Casetta Signater

v. Keppel Union School District

CASE NO.: 23STCV28732

PLAINTIFF'S

MOTION TO STRIKE THE EXPERT OPINION TESTIMONY OR ALTERNATIVE COMPEL DEPOSITION
AND PRODUCTION OF DOCUMENTS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL THE DEPOSITION OF THE PERSON
MOST KNOWLEDGABLE FOR WONDERFUL COLLEGE PREP ACADEMY – H.R. AND REQUEST FOR PRODUCTION
OF DOCUMENTS

PLAINTIFF'S

MOTION TO COMPEL PRODUCTION OF DOCUMENTS DEMANDED IN DEPOSITION NOTICE; TO
COMPEL PRODUCTION OF UNREDACTED OR PARTIALLY REDACTED DOCUMENT

Plaintiff Casetta Signater ("Plaintiff") brings this

employment action against defendant Keppel Union District School ("Defendant"). Before the court are three motions: (1)
Plaintiff's

motion to strike expert opinion testimony or alternatively, compel deposition and production of documents; (2) Defendant's motion to compel the deposition of the person most knowledgeable for Wonderful College Prep Academy – H.R.; and (3) Plaintiff's motion to compel production of documents. The court addresses these motions in turn.

I. DISCUSSION

RE MOTION TO STRIKE

A. Background

On June 29, 2026, Plaintiff filed a motion to strike the testimony of Defendant's retained expert, Amy Koellner, for failing to make Ms. Koellner available for deposition.

On August 14, 2026, Defendant filed an opposition.

On August 18, 2026, Plaintiff filed a reply.

On August 20, 2026, Defendant filed a supplemental opposition.

On August 21, 2026, Plaintiff filed a supplemental reply.

B. Analysis

The parties spill much ink trying to explain why Ms. Koellner has not appeared for deposition.

The court declines to recount that dizzying background. As it appears to the court, two points are clear. First, although discovery

deadlines were tied to the initial trial date of July 6, 2026, Defendant represented to this court that it would make Ms. Koellner available for deposition prior to this hearing date of August 27, 2026. Defendant did not do so. Instead, as made clear through the parties' voluminous filings, some without leave of court, Defendant has taken the unsupported position that expert discovery is tied to the current trial date of October 5, 2026. However, Defendant already filed an ex parte application for clarification of the discovery deadlines and the court stated in its order that the discovery window closed with the previous trial date of July 6, 2026.

(See Minute Order, 05/08/26.) There is nothing confusing or unclear about the court's ruling. If Defendant was confused, Defendant should have again sought clarification rather than assume without any support that the expert discovery deadline was somehow continued to the current trial date.

Second, the court does not appreciate the parties' flurry of late filings and, least of all, Defendant's inaccurate representations of the record. Those inaccurate representations include, but are not limited to, Defendant's reliance on Plaintiff's inoperative written objection to deposition notices in support of the position that this motion is moot. The motion is not moot and is properly before this court. The court will grant Plaintiff's alternative request and require Defendant to produce Ms. Koellner for deposition within 10 court days of this order. The court orders discovery further reopened for this limited purpose.

Monetary Sanctions

Given the foregoing, sanctions against Defendant and its counsel are warranted. Sanctions are imposed in the requested sum of \$3,375, which accounts for Plaintiff's supplemental reply to Defendant's supplemental opposition.

C. Conclusion

The motion to strike is GRANTED as to Plaintiff's alternative request for relief. Defendant is ordered to produce Ms. Amy Koellner for deposition within 10 days of this order. Defendant and its counsel are ordered to pay, jointly and severally, sanctions in the sum of \$3,375 within 30 days of this order.

II. DISCUSSION

RE MOTION TO COMPEL PMK DEPOSITION

A. Background

On June 11, 2026, Defendant filed a motion to compel Plaintiff's former employer, Wonderful College Prep Academy – H.R. (“Wonderful”), to produce its PMK for deposition and to reopen discovery for

this purpose. Defendant does not request sanctions.

On June 17, 2026, Plaintiff filed an opposition.

Plaintiff does not request sanctions.

On June 24, 2026, Defendant filed a reply.

On July 1, 2026, the court denied the motion without prejudice for Defendant's failure to serve the nonparty deponent.

On July 8, 2026, Defendant re-filed the motion with proof of service of the motion on the nonparty deponent.

The re-filed motion is unopposed.

B. Legal Standard

A party is entitled to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the action. (Code of Civil Procedure § 2017.010.) A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.)

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If the nonparty deponent is an organization, to any officer, director, custodian of records, or to any agent or employee authorized by the organization to accept service of a subpoena. (Code Civ. Proc., § 2020.220(b)(1).) Personal service of any deposition subpoena is effective to require the personal attendance and testimony of the nonparty deponent, if the subpoena so specifies. (Code Civ. Proc., § 2020.220(c)(1).) ~~~~~

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"A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address

specified on the deposition record.” (Cal. Rules of Court, rule 3.1346.)

C. Application

The court finds good cause exists to reopen discovery and to compel the deposition of Wonderful's PMK. Defendant properly served Wonderful with a deposition subpoena and Plaintiff failed to serve timely objections to the subpoena. The deposition seeks relevant information. Given the foregoing and the lack of opposition, the court will grant the motion.[1]

D. Conclusion

The motion is GRANTED. Wonderful is ordered to produce its PMK for deposition within 15 days of this order.

III. DISCUSSION RE MOTION TO COMPEL DOCUMENTS

A. Background

On August 3, 2026, Plaintiff filed a motion to compel production of documents response to a PMQ deposition notice.[2]

On August 14, 2026, Defendant filed an opposition.

On August 18, 2026, Plaintiff filed a reply.

B. Application

Plaintiff seeks six categories of relief. The court addresses them in turn.

1.
First Category: Bates Nos. DRTP 002992-02999

In its response to RFP No. 70, Defendant identified the following responsive documents: (a) the May 1, 2023 complaint form, Bates No. DRTP 002992; (b) the May 23, 2023 Complaint Procedures Letter—Notice of Investigation, Bates Nos. DRTP 002993-002999; and (c) the July 25, 2023 findings letter, Bates Nos. DRTP 002986-002991. In a supplemental response, Defendant asserted third-party privacy objections to the production of those documents. Plaintiff now seeks an order compelling Defendant to produce unredacted copies of those documents, subject to an appropriate protective order. Alternatively, Plaintiffs requests that Defendant produce copies redacting only information the Court finds necessary to protect a legally cognizable privacy interest of third parties, while leaving all substantive allegations, findings, dates, positions, and nonprivate information unredacted.

The court will grant Plaintiff's alternative request. The right of privacy of individuals is protected by the California Constitution. (Cal. Const., Art. I, § 1.) In ruling on discovery motions, the court must balance the privacy claims of the responding party with the requesting party's need for the information. (*Schnabel v. Superior Court* (1993) 5 Cal.4th 704, 718-722.) The court considers three steps in evaluating potential invasions of privacy. The party asserting the right of privacy must establish (1) a "legally protected privacy interest"; (2) an "objectively reasonable expectation of privacy in the given circumstances"; and (3) a "threatened intrusion that is serious." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) If the party asserting privacy meets this standard, the opposing party must then show that the requested documents are "directly relevant" to the litigation. Here, Defendant does not meet this standard. Without sufficient explanation, Defendant states in conclusory fashion that disclosure of the third party individuals would be a serious intrusion. Nevertheless, the court grants Plaintiff's alternative request because, consistent with that request, it will provide Plaintiff with relevant information while protecting the disclosure of the third party individuals.

2.

Second Category: The Armijo File

In

response to RFP No. 70 (and RFP No. 40), Defendant also identified an independent investigation conducted by Jessica Armijo of Armijo Legal Solutions (the "Armijo File"). Defendant argues the motion should be denied because it does not possess the Armijo file. The response is not code compliant. If Defendant does not possess all or any part of the Armijo file, Defendant must provide a further verified response stating:

- (a) whether the document currently exists; (b) whether the document previously existed; (c) whether it was ever within the District's possession, custody, or control, or that of a person acting on the District's behalf;
- (d) whether it was lost, destroyed, transferred, returned, or otherwise became unavailable; (e) when and under what circumstances it became unavailable; and
- (f) the name and address of any person or entity believed to possess it. Such a response must be provided as to each category of the Armijo File ((i) any investigation report or findings; (ii) interview notes, memoranda, recordings, and summaries; (iii) written or recorded witness statements; (iv) documents and electronically stored information reviewed by the investigator; (v) communications between Ms. Armijo or Armijo Legal Solutions and the District, its officers, employees, representatives, or counsel; (vi) the engagement agreement, scope of work, retention agreement, invoices, and payment records; and (vii) documents concerning the retention, return, transfer, preservation, or destruction of the investigation file).)

3. Third Category: Reynolds Investigation Files (C1, C2, C3)

PMQ RFP

No. 71 seeks production of Reynolds Investigation Files regarding investigations conducted by Defendant's investigator regarding other employees and other complaints. The court will order the production of the documents with redactions of the names of the third-party complainants. As Plaintiff points out Defendant did not reassert privilege in its July 29, 2026 privilege log. Further, whether the Reynolds Investigation Files contain facts sufficiently similar to this case is not relevant to whether those documents are discoverable.

4. Fourth Category: Responsive Documents to RFP Nos. 70 and 71 Not Yet Produced

Defendant

does not oppose this category of documents.

The court will order the production of these documents. If such documents do not exist, Defendant

must provide a further verified response so indicating or, where appropriate, a privilege log.

5. Fifth Category: Further PMQ Deposition

Plaintiff

seeks a further limited PMQ deposition “on the May 2023 complaint, Dr. Walker's removal as investigator, the Armijo retention and findings, the disposition of the file, C1-C3, Mr. Reynolds's role, and the District's search and preservation efforts” at Defendant's costs because Defendant produced documents regarding these topics after the deposition began. The court declines to grant this request. Defendant produced these documents at the deposition as required by the deposition notice. Moreover, Plaintiff fails to show good cause exists to order a further PMQ deposition.

6. Sixth Category: Monetary Sanctions

Given

that the court has granted the bulk of Plaintiff's motion, the court finds sanctions are warranted. Accordingly, Defendant, jointly and severally with its counsel of record, are ordered to pay sanctions in the sum of \$2,310.

C.

Conclusion

The motion to compel production of documents is GRANTED IN PART. Within 15 of this order, Defendant is ordered to produce the documents noted herein and to pay say sanctions, jointly and severally with its counsel of record, in the sum of \$2,310.

IV. DISPOSITIONS

1. The motion to strike

is GRANTED as to Plaintiff's alternative request for relief. Defendant is ordered to produce

Ms. Amy Koellner for deposition within 10 days of this order. Defendant and its counsel are ordered to pay, jointly and severally, sanctions in the sum of \$3,375 within 30 days of this order.

2.

The motion to compel PMK deposition is Granted.

3. The motion to compel documents is Granted In

Part. Within 15

of this order, Defendant is ordered to produce the documents noted herein and to pay say sanctions, jointly and severally with its counsel of record, in the sum of \$2,310.

Dated: August 27, 2026

Brock T. Hammond

Judge of the Superior Court

[1] To the extent Plaintiff relies on the arguments raised in its opposition filed on June 17, 2026, the court rejects those arguments for the reasons stated in Defendant's reply filed on June 24, 2026.

[2] On July 31, 2026, the court granted Plaintiff's ex parte application to shorten time on the motion to compel.